

Tentative Rulings and Resolution Review Hearings
August 31, 2026
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

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8:30 a.m. Law and Motion

AKBARI VS. WESTERN TRUCK CENTER, ET AL.

CASE NUMBER: 23CV-0202398

Tentative Ruling on Motion for Summary Judgment or Summary Adjudication: Defendant Western Truck Center (“Western Truck”) moves for summary judgment or in the alternative, for summary adjudication, as to each cause of action of Plaintiff Amir Akbari’s First Amended Complaint. Western Truck also seeks summary judgment or in the alternative, for summary adjudication, as to each cause of action of its Cross-Complaint. Plaintiff opposes the Motion.

Standard on Summary Judgment. The party moving for summary judgment bears the initial burden to make a prima facie showing that there are no triable issues of material fact. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. There is a genuine issue of material fact only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* at 845. A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1). The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. CCP § 437c(p)(2).

In ruling on a motion for summary judgment, the Court must consider not only the direct evidence presented, but also reasonable inferences to be drawn therefrom, and must view the evidence and inferences “in the light most favorable to the opposing party.” CCP § 437c(c); *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 843. “Because summary judgment is a drastic measure that deprives the losing party of trial on the merits, it may not be invoked unless it is clear from the declarations that there are no triable issues of material fact.” *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 304. “A summary judgment motion is directed to the issues framed by the pleadings. Those are the only issues a motion for summary judgment must address.” *Van v. Target Corp.* (2007) 155 Cal. App. 4th 1375, 1387.

Plaintiff Akbari generally alleges that Western Truck failed to give his third-party warranty administrator, National Truck Protection (“NTP”), information needed after his truck broke down in February 2023. He asserts breach of implied contract, negligent interference with business prospect, and negligence. Western Truck contends the evidence establishes it fully performed the diagnostic and tear-down services Akbari authorized under a signed written contract, acted with reasonable care, sent NTP the required documentation, and had no duty regarding NTP’s coverage decision. Western Truck also contends Akbari breached the parties’ written contract by failing to pay for services and for long term storage of the truck.

Plaintiff’s First Amended Complaint alleges three causes of action: 1) Breach of Implied Contract; 2) Negligent Interference with Business Prospect; and 3) Negligence. Defendant’s Cross-Complaint alleges two causes of action: 1) Breach of Contract and 2) Unjust Enrichment. Defendant Western Truck Center has noticed five issues for summary judgment or in the

alternative summary adjudication: 1) Plaintiff cannot establish the elements of its claim for breach of implied contract; 2) Plaintiff cannot establish the elements of its claim for negligent interference with business prospect; 3) Plaintiff cannot establish the elements of its claim for negligence; 4) Western Truck is entitled to summary judgment or adjudication on its breach of contract claim; 5) Western Truck is entitled to summary judgment or adjudication on its claim for unjust enrichment.

Matters Deemed Admitted. Pursuant to CCP § 2033.410(a), any matter admitted in response to a request for admission is conclusively established against the party making the admission in the pending action. “A party opposing a motion for summary judgment cannot offer evidence that contradicts its own judicial admissions. (*Visueta v. General Motors Corp.* (1991) 234 Cal.App.3d 1609, 1613.) “[A] judicial admission cannot be rebutted: It estops the maker.” (*Uhrich v. State Farm Fire & Casualty Co.* (2003) 109 Cal.App.4th 598, 613.) ... Accordingly, these judicial admissions are binding and dispositive without further evidence. (*See, e.g., Kurinij v. Hanna & Morton* (1997) 55 Cal.App.4th 853, 870–871.) “On summary judgment such admissions are proper and overcome evidence even when the opposing party seeks to contradict the prior admission.” (*Id.* at p. 871.)” *Vieira Enterprises, Inc. v. City of East Palo Alto* (2012) 208 Cal.App.4th 584, 598-599.

On April 13, 2026, the Court entered an order deeming admitted Western Truck’s Requests for Admission. These are conclusively established against Plaintiff. They establish that Western Truck performed the requested services, did not fail to perform any part of them, acted reasonably, and did not cause harm. They establish that Plaintiff agreed to pay Western Truck for diagnostic services, that Western Truck performed those services, Plaintiff received the invoice for those services and never paid. Plaintiff further admitted that he has no witnesses or documents to support his allegations. The only evidence Plaintiff offers in support of his Opposition to the Motion, are three emails between counsel and third parties who counsel represents are representatives of NTP, and another mechanic shop. These third parties have not submitted declarations, and these emails do not establish the facts they are cited to support in the separate statement. Additionally, this evidence cannot overcome facts deemed admitted.

Moreover, Plaintiff’s Opposition to this Motion does not address the five issues raised for summary adjudication. Instead, Plaintiff advances a new theory, not alleged in the FAC, which is “breach of mutual benefit bailment (called Deposit in the Code)” and refers to Civil Code 1814. Neither this cause of action, nor the facts now alleged to support it, are set forth in the FAC. The FAC alleges negligence on the basis of Western Truck’s failure to provide information to NTP. The Opposition argues mutual benefit bailment is in essence the same as a claim for negligence and alleges that Western Truck was negligent in leaving the engine exposed to the elements for over a year, leading to ruination of the engine. “Moving defendants have the burden on summary judgment of negating only those theories of liability as alleged in the complaint and are not obliged to refute liability on some theoretical possibility not included in the pleadings, simply because such a claim was raised in plaintiff’s declaration in opposition to the motion for summary judgment.” *Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal.App.4th 261, 290. Thus, the Court need not reach the extraneous issue of mutual benefit bailment raised for the first time in the Opposition papers and will instead reach the merits of the causes of action raised in the FAC and Cross-Complaint.

Issue 1: Plaintiff cannot establish the elements of its claim for breach of implied contract.

“A contract may be written, oral or inferred from the parties' conduct as an “implied-in-fact” contract. An implied contract must be founded upon an ascertained agreement of the parties to perform it. Accordingly, an implied-in-fact contract “consists of obligations arising from a mutual agreement and intent to promise where the agreement and promise have not been expressed in words.” (*Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1230 [a claim for breach of an implied contract has the same elements as a claim for breach of a written contract, except that the promise is not expressed in words but is implied from conduct].” *Siskiyou Hospital, Inc. v. County of Siskiyou* (2025) 109 Cal.App.5th 14, 52 (internal citations omitted). Thus, the essential elements are 1) existence of the implied-in-fact contract, 2) performance or excuse for nonperformance, 3) breach, and 4) damages.

Here, Plaintiff's FAC alleges an implied-in-fact contract arose when Western Truck accepted his truck for repair, that Western truck breached by delaying repairs and by not providing information and documents to NTP. (UMF 1) The parties have a valid written contract covering the terms of service, which Western Truck fully performed. (UMF 2-4) Plaintiff requested Western Truck perform diagnostic and tear-down work (UMF 3-5), that Western Truck fully performed (UMF 6-7), acted with reasonable care (UMF 8), documented what it found and sent in a parts-and-approval request to NPT (UMF 9), and that Western Truck did not cause Plaintiff harm (UMF 21). Defendant has carried its burden to establish no triable issue of material fact remains as to the existence of a contract, performance, breach, and damages. Plaintiff cannot overcome the facts deemed admitted and has failed to rebut with admissible evidence. Summary judgment is **GRANTED**.

Issue 2: Plaintiff cannot establish the elements of its claim for negligent interference with business prospect.

“The tort of negligent interference with prospective economic advantage is established where a plaintiff demonstrates that (1) an economic relationship existed between the plaintiff and a third party which contained a reasonably probable future economic benefit or advantage to plaintiff; (2) the defendant knew of the existence of the relationship and was aware or should have been aware that if it did not act with due care its actions would interfere with this relationship and cause plaintiff to lose in whole or in part the probable future economic benefit or advantage of the relationship; (3) the defendant was negligent; and (4) such negligence caused damage to plaintiff in that the relationship was actually interfered with or disrupted and plaintiff lost in whole or in part the economic benefits or advantage reasonably expected from the relationship.” *Venhaus v. Shultz* (2007) 155 Cal.App.4th 1072, 1078.

Here, Plaintiff alleges that Western Truck had a duty to promptly repair his truck or provide information to NTP for it to pay for repairs and release his truck, and that Western Truck negligently interfered with Plaintiff's business prospects by failing to act with reasonable care. Western Truck argues that Plaintiff cannot satisfy the causation requirement of this claim. Western Truck has carried its burden to establish no triable issue of fact remains as to causation, because Plaintiff cannot show it was reasonably probable that he would have received warranty coverage from NTP but for Western Truck's alleged interference. NTP denied coverage based on its determination that wear and tear was not covered under its warranty. (UMF 31-37.) Plaintiff's truck suffered major internal engine problems and was inoperable when delivered to Western Truck, indicating preexisting conditions that would likely have resulted in warranty denial regardless of Western Truck's conduct. (UMF 29-31.) The warranty decision was made by NTP

based on its own coverage standards and exclusions, not due to any action by Western Truck. (UMF 35, 36.) Plaintiff cannot overcome the facts deemed admitted and has failed to rebut any of this with admissible evidence. Summary judgment is **GRANTED**.

Issue 3: Plaintiff cannot establish the elements of its claim for negligence.

“It is established law that plaintiff, in order to prove negligence on the part of a defendant, must establish a duty owed, a breach of that duty, proximate cause of injury and damages.” *Frantz v. San Luis Medical Clinic* (1978) 81 Cal.App.3d 34, 39.

Here, plaintiff has admitted Western Truck performed the requested diagnostic services (UMF 39) did not fail to perform any part of them (UMF 40) acted with reasonable care (UMF 41) and did not cause harm. (UMF 42.) Additionally, Plaintiff cannot establish the element of duty because Plaintiff never had a written contract with Western Truck in which it proposed to provide information to any third party or to NTP. (UMF 43.) Defendant has established there are no triable issues as to the claim for negligence. Plaintiff cannot overcome the facts deemed admitted and has failed to rebut with admissible evidence. Summary judgment is **GRANTED**.

Issue 4: Western Truck is entitled to summary judgment or adjudication on its breach of contract claim.

“To be entitled to damages for breach of contract, a plaintiff must plead and prove (1) a contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) damage to plaintiff.” *Troyk v. Farmers Group, Inc.* (2009) 171 Cal.App.4th 1305, 1352.

Here, Plaintiff admitted that he signed a written contract with Western Truck for diagnostic services. (UMF 51, 52.) Western Truck performed the services (UMF 54), did not fail to perform any portion of the services (UMF 55), and performed the services with reasonable care (UMF 56). Plaintiff breached the terms of the contract by failing to pay. (UMF 61.) Additionally, Plaintiff abandoned his truck at Western Truck for nearly a year (UMF 63) and therefore owes Western Truck storage fees per the terms of the contract totaling \$15,840.00. Defendant has demonstrated no triable issues of material fact remain as to its claim for breach of contract against Plaintiff. Plaintiff has failed to rebut with admissible evidence. Summary judgment is **GRANTED**.

Issue 5: Western Truck is entitled to summary judgment or adjudication on its claim for unjust enrichment.

Cross-Complainant Western Truck alleges unjust enrichment in the alternative to its breach of contract claim. The Court has found in favor of Western Truck on the breach of contract claim. Plaintiff cannot recover on both theories. “[A]n action based on an implied-in-fact or quasi-contract cannot lie where there exists between the parties a valid express contract covering the same subject matter.” (*Lance Camper Manufacturing Corp. v. Republic Indemnity Co.* (1996) 44 Cal.App.4th 194, 203.) However, “restitution may be awarded in lieu of breach of contract damages when the parties had an express contract, but it was procured by fraud or is unenforceable or ineffective for some reason.” *Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 231. Having concluded that Cross-Complainant prevails on the breach of contract claim, summary judgment on the unjust enrichment alternative theory is **DENIED**.

Defendant's Motion for Summary Judgment is **GRANTED** as to Issues 1-4. As Issue 5 was argued in the alternative, this result affords complete relief in Defendant's favor on both the First Amended Complaint and the Cross Complaint. A proposed order has been lodged and will be executed.

AKBARI VS. WESTERN TRUCK CENTER, ET AL.

CASE NUMBER: 23CV-0202398

Tentative Ruling on Motion for Terminating Sanctions: Defendant Western Truck Center moves for an order of terminating sanctions, or in the alternative evidentiary sanctions. Plaintiff also requests sanctions to be imposed jointly and severally against Plaintiff and Counsel in the amount of \$13,450. Plaintiff opposes the motion.

Merits: Misuses of the discovery process include disobeying a court order to provide discovery. CCP § 2023.010(g). The court may impose sanctions against anyone engaging in misuse of the discovery process, including monetary, issue, evidence, and terminating sanctions. CCP § 2023.030. Monetary sanctions shall be imposed unless the court finds the one subject to the sanction acted with substantial justification making imposition of sanctions unjust. CCP § 2023.030(a). Issue, evidence, and terminating sanctions may be imposed. CCP § 2023.030(b), (c), and (d); 2025.450(h).

"The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. "Discovery sanctions 'should be appropriate to the dereliction and should not exceed that which is required to protect the interests of the party entitled to but denied discovery. If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. "A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 992 (internal citations omitted).

In this action, the Court has previously issued three separate Orders on Defendant's motions for Plaintiff's repeated misuse of the discovery process. The Court imposed sanctions totaling \$9,600. Plaintiff concedes that he has not complied with any of the three Orders and has not paid any of the sanctions. Further, Plaintiff concedes to spoliation of evidence, by selling the truck which is the subject of this dispute, despite executing a stipulation to preserve it. No explanation is provided other than that the Plaintiff could not afford to keep the truck. The Court finds that the violations here are willful, preceded by a history of abuse, and that lesser sanctions would not produce compliance. The totality of circumstances here weigh in favor of terminating sanctions. However, Defendant has also filed a Motion for Summary Judgment, which is set for hearing today. In a separately issued tentative ruling, the Court intends to grant Summary Judgment in favor of Defendant/Cross-Complainant on all causes of action in the First Amended Complaint and the Cross-Complaint. This result moots the request for terminating sanctions.

Sanctions: The court may impose sanctions against anyone engaging in misuse of the discovery process, including monetary, issue, evidence, and terminating sanctions. CCP § 2023.030. Monetary sanctions shall be imposed unless the court finds the one subject to the sanction acted with substantial justification making imposition of sanctions unjust. CCP § 2023.030(a).

Here, the Court has previously imposed sanctions of \$9,600.00, which have not been paid. Defendant requests an additional \$13,450.00 in attorney fees for bringing this motion. This is based on rates of \$690 per hour, and \$545 per hour. No breakdown of hours spent has been provided, so the Court cannot determine whether the time spent was reasonable. Using the lower hourly rate, this would amount to over 24 hours on the preparation of this motion.

The Court finds the hourly rate and hours requested unreasonable. A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. *See PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. A party seeking to recover hourly rates for out-of-town counsel that are higher than the local rates must show (1) a good faith effort to find local counsel, and (2) demonstrate that hiring local counsel was impracticable. *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243. There is no evidence supporting an award of hourly rates higher than local rates. Based on the Court's knowledge and experience, it finds \$400 per hour to be reasonable in this matter. The Court will also reduce the hours requested to 8, since no itemized breakdown was provided. Sanctions will be imposed in the amount of \$3,200.

The Motion for Terminating Sanctions is **GRANTED** in part. The requests for terminating or evidentiary sanctions is made moot by the granting of Defendant's Motion for Summary Judgment. The request for an order of sanctions jointly and severally against Plaintiff and Counsel is granted, in the amount of \$3,200. Defendant's proposed order will be modified.

BLEAKLEY VS. AIRBNB, INC, ET AL.

CASE NUMBER: 26CV-0210657

Tentative Ruling on Motion for Order Nunc Pro Tunc to Set Filing Date: Plaintiff Michelle Bleakly moves for an Order *nunc pro tunc* setting (or amending) the filing date for the Complaint in this action as May 11, 2026 to correct a clerical error. The Court is inclined to grant the Motion on the merits, if the representations Counsel makes in the Motion are adequately supported by evidence. The Declaration of Sako Demirjian, filed concurrently with the Motion, does not establish any of the facts alleged in the Motion. Moreover, Exhibits A and B are missing from the filing. The Court will continue hearing on this Motion to permit Plaintiff to file a supplemental declaration that adequately supports the Motion. Today's hearing is continued to **Monday, September 28, 2026 at 8:30 a.m. in Department 64.** Any supplemental declaration must be filed no later than September 22, 2026.

LOZANO VS. CALIFORNIA TOWING & TRANSPORT, ET AL.

CASE NUMBER: 25CV-0208662

Tentative Ruling on Demurrer: Defendant City of Redding and the Redding Police Department demur to each cause of action in the Second Amended Complaint on the grounds that the claims are barred by failure to comply with the Government Claims Act, statutory immunity, for failure to state a claim, and for being vague and ambiguous. The demurrer is properly noticed and unopposed.

Meet and Confer: CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Tracy Werner establishes compliance with the meet and

confer requirements.

Request for Judicial Notice: Defendant requests the Court take judicial notice of a Redding Police Department Citation, Phone Message, and Call for Service. The request is denied as these documents do not fall within any of the categories set forth in Evidence Code 452.

Merits: A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

The operative complaint is Plaintiff’s Second Amended Complaint, filed May 4, 2026. It alleges the following causes of action: 1) Conversion (against CTT), 2) Trespass to Chattels (against CTT), 3) Negligence (against all Defendants), 4) Civil Rights 42 USC 1983 (against City and County), 5) Bane Act Civil Code 52.1 (against CTT), 6) Unfair Business Practices, Bus. & Prof. Code 17200 (against CTT), and 7) Declaratory Relief (against all Defendants). Therefore, the only causes of action at issue on this Demurrer are 3, 4, and 7.

First as a threshold issue, Plaintiff’s claims are barred by his failure to comply with the Government Claims Act. Gov. Code § 945.4 provides that no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented in accordance with Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of Part 3 of this division until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board, in accordance with Chapters 1 and 2 of Part 3 of this division. Plaintiff’s Second Amended Complaint alleges only that he filed a Government Claim with County of Shasta. The SAC does not allege a Government Claim was filed with the City of Redding. The City argues no Government Claim was received prior to the filing of this action. Plaintiff has not disputed that argument or provided any evidence to the contrary.

Negligence. Government Code § 815 provides that a California public entity cannot be held liable for injury or damages except where authorized by statute. Common law torts such as negligence are not permitted. Plaintiff also lists CVC 22651.07, an apparent reference to the California Vehicle Code. This statutes does not authorize liability for damages against a public entity. Therefore the demurrer as to the third cause of action for negligence as to the City is **SUSTAINED** without leave to amend.

Civil Rights 42 USC § 1983. To state a cause of action under 42 USCS § 1983 against a city in California, a plaintiff must allege that a municipal policy, practice, or custom caused a municipal employee, acting under color of state law, to violate the plaintiff’s federally protected rights. *Irwin v. City of Hemet* (1994) 22 Cal. App. 4th 507. To establish local governmental liability under the seminal *Monell* framework, the plaintiff must sufficiently plead three primary elements: (1) the

deprivation of a constitutional right or a right secured by the laws of the United States; (2) that the city had an official policy, practice, or custom that amounted to deliberate indifference to that right; and (3) that the action taken pursuant to that policy, custom, or practice was the moving force behind and directly caused the constitutional violation and injury. *Casey N. v. County of Orange* (2022) 86 Cal. App. 5th 1158. “In order to state a cause of action under 42 United States Code sections 1983 or 1985(3), the pleader must show, in a specific and nonconclusory way, that the alleged acts deprived him of rights, privileges, or immunities secured by the federal Constitution and laws.” *Duffy v. City of Long Beach* (1988) 201 Cal.App.3d 1352, 1360.

Here, Plaintiff has made a bare recitation of “deprivation of property without due process and unreasonable seizures.” The SAC fails to state a claim pursuant to 42 USC § 1983. Plaintiff has not opposed the motion and there is no showing that there is a reasonable possibility the defect can be cured by amendment. Therefore, the demurrer to the fourth cause of action as to the City is **SUSTAINED** without leave to amend.

Declaratory Relief. “Declaratory relief generally operates prospectively to declare future rights, rather than to redress past wrongs. [Citations.] It serves to set controversies at rest before they lead to repudiation of obligations, invasion of rights or commission of wrongs. In short, the remedy is to be used in the interests of preventive justice, to declare rights rather than execute them. To qualify for declaratory relief, [a party] would have to demonstrate its action presented two essential elements: ‘(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to [the party's] rights or obligations’ ” *Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 909.

Here, Plaintiff’s SAC seeks “a declaration that the sales were void and statutory rights were violated.” This bare recitation without the identification of any actual present controversy, or rights or obligations, is insufficient to put Defendant on notice of what Plaintiff is alleging. Plaintiff has not opposed the motion and there is no showing that there is a reasonable possibility the defect can be cured by amendment. Therefore, the demurrer to the fourth cause of action as to the City is **SUSTAINED** without leave to amend.

The City of Redding’s Demurrer to Plaintiff’s Second Amended Complaint is **SUSTAINED** without leave to amend. The proposed order will be executed.

LVNV FUNDING LLC VS. DYSON

CASE NUMBER: 25CVG-02396

Tentative Ruling on Motion to Set Aside Default: Defendant Megan Dyson moves to set aside default judgment pursuant to CCP 473(b) on the grounds of surprise and excusable neglect. The matter has been properly noticed and is unopposed.

Merits. CCP § 473(b) permits the Court to set aside a default or order entered against an aggrieved party due to mistake, surprise, inadvertence or excusable neglect. The burden is on the moving party to show that the neglect was *excusable*: i.e., that the default could not have been avoided through the exercise of ordinary care. *Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58. “[T]he acts which brought about the default must have been the acts of a reasonably prudent person under the same circumstances.” *Id.* The moving party has the burden of proof to establish one of these conditions by a preponderance of the evidence. *Luz v. Lopes* (1960) 55 Cal.2d 54, 62. The moving party must submit affidavits or testimony demonstrating a reasonable cause for the default.

Huh v. Wang (2007) 158 Cal.App.4th 1406, 1491. CCP § 473(b) is to be liberally construed to further the policy of adjudicating legal controversies on the merits. *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1146.

Here, Defendant has submitted sufficient evidence that her failure to file a responsive pleading was due to surprise or excusable neglect. Plaintiff received timely notice of this Motion and did not file an opposition.

The Motion to Set Aside Default is **GRANTED**. The Default is **VACATED**. No proposed order has been lodged as required by Local Rule 5.17(D). Defendant is ordered to submit a proposed order. Defendant is granted fifteen days leave from today's date to file her responsive pleading. The Proposed Answer is not deemed filed.

MARSHALL VS. EVERLAND GROUP LLC, ET AL.

CASE NUMBER: 26CV-0211292

Tentative Ruling on Motion to Seal: Plaintiff moves for an order sealing all records in this action pursuant to CRC 2.550 and 2.551. Neither Defendant has appeared in this action.

Recognizing the public's First Amendment right of access to documents used at trial or as a basis of adjudication and a presumption of openness of substantive court proceedings in ordinary cases, our Supreme Court in *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, set forth the findings that both the trial and appellate courts must expressly make to seal a record. Courts must find that (1) there is an overriding interest supporting sealing records; (2) there is a substantial probability that the interest will be prejudiced absent sealing; (3) the proposed sealing is narrowly tailored to serve the overriding interest; and (4) there is no less restrictive means of achieving the overriding interest. *Id.* at 1217–1218; *see also* California Rule of Court 2.550(d).

Plaintiff's Declaration establishes that there is an overriding interest supporting sealing records and that there is a substantial probability that the interest will be prejudiced absent sealing. However, the grounds proposed – sealing the entire court record – are not narrowly tailored to serve the overriding interest, and there is a less restrictive means. Specifically, the Court finds that permitting Plaintiff to proceed via pseudonym, and to redact her home address from all public filings, is a more narrowly tailored means of achieving the overriding interest of protecting Plaintiff's privacy and addressing her safety concerns given the facts provided in her Declaration.

Plaintiff did not follow the proper procedure for requesting sealing, and has already publicly filed many documents which include her name and home address. In order to protect this information, the Court will permit the records filed from July 24, 2026 through August 31, 2026 to be filed under seal. However, Plaintiff is ordered to file a public version of the Complaint, identical to the first, with the exception that her name be replaced with "Jane Doe" and her address is redacted. Going forward, all documents filed with the Court must use "Jane Doe" and redact the home address. Aside from those modifications, nothing further is permitted to be filed under seal.

The Motion is **GRANTED** in part. The proposed order Plaintiff filed was improperly attached to her Declaration. Plaintiff is directed to lodge a new proposed order that is consistent with this ruling. The clerk is directed to place under seal all documents filed in this action through today's date. Plaintiff is granted 10 days leave to file a public version of her Complaint as detailed above.

MUNNERLYN, ET AL. VS. MARTIN, ET AL.

CASE NUMBER: 24CV-0205402

Tentative Ruling on Motion to Set Aside: Respondent Jonathan Martin moves to Set Aside Default. No proof of service of the Motion or a notice of hearing are on file. The Court cannot proceed to hear the merits of a Motion unless all parties have been served. Therefore, absent a request from Mr. Martin for a continuance to properly notice the Motion, the Court intends to **DENY** the Motion for failure to serve.

IN RE: PEACOCK

CASE NUMBER: 26CV-0211028

Tentative Ruling on Petition for Change of Name: Petitioner Christian Andrew Peacock seeks to change his name to Christian Andrew Johnston. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

PERRY VS. COUNTY OF SHASTA

CASE NUMBER: 26CV-0209982

DISCLOSURE: Judge Birss worked as an associate attorney at Berg and Associates from June 2014 through September 2018. His prior employment falls outside the time period requiring recusal. That prior employment does not impact his ability to be fair and impartial.

Tentative Ruling on Request for Administrative Record, and for Setting Briefing Schedule, and Hearing: This matter is on calendar for hearing on Petitioner's request that the Court request the Administrative Record and set a briefing schedule and hearing pursuant to Gov. Code 53069.4(b). The Court finds that this Motion is moot. The Administrative Record was lodged on July 24, 2026. The parties previously stipulated to the briefing schedule set forth in the County's Proposed Briefing and Hearing Schedule, filed June 10, 2026. The hearing has been set for October 30, 2026 at 8:30 a.m. All the relief requested in Petitioner's July 24, 2026 Request has been resolved. The Request is moot and is dropped from calendar. No appearances are necessary. The Court confirms the future hearing date of September 21, 2026 at 8:30 a.m. in Department 64 for further proceedings regarding the Motion for Stay of Enforcement.

IN RE: PETRICK

CASE NUMBER: 26CV-0211024

Tentative Ruling on Petition for Change of Name: Petitioner Kierra Lee Petrick seeks to change her last name to Love. She also seeks to change her two minor children's last name from Petrick to Love. Proof of publication has been filed.

However, the Petition is brought by only one parent. The father is not identified in the Petition. Petitioner must file an Amended Petition identifying the father. Additionally, when a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4).

In the alternative to personal service, the Court may order notice be given in another manner the Court determines is reasonably calculated to give actual notice to the non-consenting parent. CCP § 1277(a)(4). No proof of service is on file. The Court has reviewed the Petitioner's declaration which states she could not locate the father when she was going through divorce court in 2024/2025. The Court will require Petitioner to make new efforts to locate and serve the father

notice of this Petition. Petitioner must file proof of service, or a declaration which sufficiently details new efforts to locate and serve the father, at least five days before the future court date.

This matter is continued to **October 19, 2026, at 8:30 a.m. in Department 64** to permit service on the father. Petitioner shall file an Amended Order to Show Cause (“Amended OSC”) for the continued hearing date. The Amended OSC must be personally served on the father at least 30 days before the continued hearing date. No appearance is necessary on today’s calendar.

IN RE: RUIZ

CASE NUMBER: 26CV-0210906

Tentative Ruling on Petition for Change of Name: Petitioner Shawnee Blue Ruiz seeks to change her name to Shawnee Blue Cross. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

SKAGGS VS. MITCHELL, ET AL.

CASE NUMBER: 24CV-0205961

Tentative Ruling on Motion for Attorney Fees: Plaintiff moves for an order awarding attorney fees and costs incurred for the common benefit of all owners in this partition action, pursuant to CCP §§ 874.010 and 874.040. The motion is unopposed.

CCP § 874.010 provides that the costs of partition include the reasonable attorney fees incurred or paid by a party for the common benefit. CCP § 874.040 provides that the court shall apportion the costs of partition among the parties in proportion to their interests, or as may be equitable. Here, the Court entered Interlocutory Judgment Granting Partition by Sale on March 30, 2026. That Judgment provides for the award of reasonable attorney fees and costs incurred for the common benefit of all owners in amount to be determined on motion. The Judgment further provides for the deduction of the awarded fees and costs from the proceeds of the sale prior to distribution to the parties.

The Court finds that the attorney fees sought are reasonable. The hourly rate for counsel (\$325) and for the paralegal (\$125) is within the range typically awarded for comparable work in Shasta County. Additionally, the request is supported by a Declaration of Counsel and detailed billing records. The hours billed are reasonable. The Declaration of Counsel also provides an itemized list of expenses. These are recoverable with the exception of costs for printing (\$94.25) and mailing (\$280.22). CCP § 1033.5(b)((3) provides that postage and photocopying charges are not allowable costs. Therefore, the total award will be reduced by \$374.47.

The Motion is **GRANTED**. Attorney fees and costs in the total amount of \$21,802.50 are awarded. Pursuant to the Court’s March 30, 2026 Judgment, this amount is to be deducted from the proceeds of the sale of the subject property prior to distribution to the parties. The proposed order will be modified.

SP CONTRACTING, INC. VS. HOUSTON, ET AL.

CASE NUMBER: 26CVG-00664

This matter is on calendar for hearing on Defendant/Cross-Complainant’s Demurrer to Plaintiff’s Complaint. On the Court’s own motion, the hearing is continued to **Tuesday, September 8, 2026 at 8:30 a.m. in Department 64**. The clerk has provided notice to all parties. No appearances are

necessary on today's calendar.

WARD, ET AL. VS. VIBRA HEALTHCARE, LLC, ET AL.

CASE NUMBER: 23CV-0203171

Tentative Ruling on Motion to Substitute Successor in Interest: Plaintiff Hauva Ward moves for an order naming her as successor in interest to her late husband, Richard Ward's claims in this action pursuant to CCP 377.31. The motion is properly noticed and unopposed.

Code of Civil Procedure 377.30 et seq. provides that a cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent's successor in interest, subject to Chapter 1 (commencing with Section 7000) of Part 1 of Division 7 of the Probate Code, and an action may be commenced by the decedent's personal representative or, if none, by the decedent's successor in interest.

The Court finds that the causes of action alleged in this matter survive Decedent's death within the meaning of Code of Civil Procedure section 377.20, and that the proposed successor has submitted a declaration satisfying the requirements of Code of Civil Procedure section 377.32, including a certified copy of Decedent's death certificate.

The motion to substitute Hauva Ward as successor in interest for Decedent Richard Ward is **GRANTED**. Plaintiff is granted leave to file an amended complaint reflecting the substitution within 20 days of today's hearing. A proposed order has been lodged and will be executed.

WRIGHT VS. TARGET CORPORATION

CASE NUMBER: 26CV-0210029

This matter is on calendar for hearing on Defendant Target Corporation's Motion to Strike. On the Court's own motion, the hearing is continued to **Tuesday, September 8, 2026 at 8:30 a.m. in Department 64**. The clerk has provided notice to all parties. No appearances are necessary on today's calendar.

9:00 a.m. Review Hearings

BIANCHIN VS. ARIK, MD, ET AL.

CASE NUMBER: 25CV-0208843

This matter is on calendar for status and trial setting. The matter is now at issue and ready to be set for trial. However, it is unclear whether Defendants Dignity Community Care and Foundation Physician Medical Group received notice of today's hearing. The proof of service of notice of hearing on file does not include those two Defendants and their Answer was filed just a week ago. To ensure all parties have sufficient notice, the Court will continue today's review hearing to **Monday, September 21, 2026 at 9:00 a.m. in Department 64** for trial setting. Plaintiff is ordered to give notice to all parties and to file a proof of service. No appearances are necessary today.

LOZANO VS. COUNTY OF SHASTA

CASE NUMBER: 26CV-0210630

This matter is on calendar for review regarding status of the case. Defendant County of Shasta has filed a Demurrer which is set for hearing on September 28, 2026. Today's review hearing is therefore continued to **Monday, September 28, 2026 at 9:00 a.m. in Department 64** for review

regarding status of the case. No appearances are necessary today.

LOZANO VS. CALIFORNIA TOWING & TRANSPORT, ET AL.

CASE NUMBER: 25CV-0208662

This matter is on calendar for review regarding status of the case. On today's 8:30 a.m. calendar, the Court intends to sustain the City of Redding's Demurrer without leave to amend. This leaves Defendants California Towing and Transport and County of Shasta, both of which have filed an Answer. The parties should appear today prepared to discuss trial setting.

LUKE PEARSON CONSTRUCTION, LLC VS. BEUTEL

CASE NUMBER: 24CV-0204490

This matter is on calendar for status and trial setting. The matter was filed March 11, 2024 and is exempt from plan designation. The Court intends to set a trial date today that falls within the next six months. No party has posted jury fees so the right to a jury trial is waived. The parties are ordered to appear today with available trial dates.

MCCLOSKEY VS. MORENO-MUNGUIA

CASE NUMBER: 25CV-0208928

This matter is on calendar for review regarding status of default documents. Plaintiff's request for clerk's judgment filed on August 24, 2026 was denied, because the requested judgment included general and special damages, which require judicial determination and evidentiary support. The matter must be submitted as a Request for Entry of Default and Court Judgment. Today's review hearing is continued to **Monday, September 28, 2026 at 9:00 a.m. in Department 64** for review regarding status of default judgment. No appearances are necessary on today's calendar.

SKAGGS VS. MITCHELL, ET AL.

CASE NUMBER: 24CV-0205961

This matter is on calendar for review regarding status of appraisal and partition by sale. A status statement has been filed which appears to indicate that Plaintiff intends to complete the sale of the subject property without obtaining an appraisal, in violation of the Court's March 30, 2026 Interlocutory Judgment (§ 8). If Plaintiff wants to proceed without an appraisal, appropriate leave must be sought pursuant to the procedures set forth in CCP 874.316. For example, pursuant to an evidentiary hearing wherein the court determines the fair market value. CCP 874.316(c). Plaintiff has presented no authority permitting them to "complete the sale of the subject property...which will establish the fair market value in lieu of an appraisal." An appearance is necessary on today's calendar to discuss the status of the case.

VELOCITY INVESTMENTS, LLC VS. VILLARREAL

CASE NUMBER: 25CVG-02666

This matter is on calendar for review regarding status of the case. Notice of Conditional Settlement was filed on February 2, 2026 indicating the matter would be dismissed no later than October 21, 2027. The matter is continued to **Monday, November 8, 2027 at 9:00 a.m. in Department 64** for status of dismissal. The Court intends to dismiss the matter without prejudice on that date per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the hearing. No appearance is necessary on today's calendar.

WILSON VS. FASOLI

CASE NUMBER: 23CV-0201520

This matter is on calendar for review regarding status of the case. Plaintiff has filed a status statement. This matter was filed February 3, 2023. A stay pending resolution of a related criminal matter was lifted at the last review hearing on June 29, 2026. The Court intends to set the matter for trial no later than January 5, 2027. Appearances are necessary on today's calendar.